

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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THE CITY OF NEW YORK,

Plaintiff,

-against-

SUMMONS

Index No.:

THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK #1070, TAX LOT #20, COUNTY OF NEW YORK, CITY and STATE of NEW YORK; WEST 42nd STREET DEVELOPERS, LLC; BABY'S WEST 42 LLC; "JOHN DOE" and "JANE DOE," fictitiously named parties, true names unknown, the intended being the owners, lessees, operators or occupants of the commercial premises operating within the basement, ground floor and second floor of the building at 512 West 42nd Street, New York, New York; and any person claiming any right, title or interest in the real property which is the subject of this action,

Defendants.

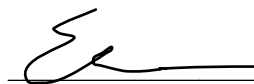
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YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and serve a copy of your answer on plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. In the case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

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The venue of this action designated by the plaintiff is New York County, the county in which the property affected by this action is located. Plaintiff designates New York County as the place of trial.

DATED: New York, New York
January 27, 2025



MURIEL GOODE-TRUFANT
Corporation Counsel of the
City of New York
MICHAEL GERBER, ESQ.
Deputy Commissioner,
Legal Matters
New York City Police Dept.
Attorney for Plaintiff
By: EVAN GLUCK, ESQ.
375 Pearl Street, Box 39
New York, New York 10038
(646) 610-4516

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
THE CITY OF NEW YORK,
Plaintiff,

-against-

VERIFIED COMPLAINT

Index No.:

THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK #1070, TAX LOT #20, COUNTY OF NEW YORK, CITY and STATE of NEW YORK; WEST 42nd STREET DEVELOPERS, LLC; BABY'S WEST 42 LLC; "JOHN DOE" and "JANE DOE," fictitiously named parties, true names unknown, the intended being the owners, lessees, operators or occupants of the commercial premises operating within the basement, ground floor and second floor of the building at 512 West 42nd Street, New York, New York; and any person claiming any right, title or interest in the real property which is the subject of this action,

Defendants.

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Plaintiff, the City of New York, by its attorney, Muriel Goode-Trufant, Corporation Counsel of the City of New York, Michael Gerber, Deputy Commissioner for Legal Matters, New York City Police Department, of counsel, alleges as follows upon information and belief:

INTRODUCTION

1. The plaintiff brings this action pursuant to and by the authority of Section 20 of the General City Law, Section 394 of the New York City Charter and Sections 7-704(a) and 7-706(a) of the New York City Administrative Code ("Administrative Code).

THE PARTIES

2. Plaintiff THE CITY OF NEW YORK is a municipal corporation incorporated under the laws of the State of New York.

3. Defendant THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK #1070, TAX LOT #20, COUNTY OF NEW YORK, CITY and STATE of NEW YORK, is the real property containing the public nuisance activity alleged herein. The unlawful activities alleged herein are taking place in the commercial premises operating located within the basement, ground floor and second floor of the building located at 512 West 42nd Street, New York, New York (“subject premises”).

4. Defendant WEST 42nd STREET DEVELOPERS, LLC is the last recorded owner of the real property which is the site of the subject premises according to a deed recorded in New York County, Office of the City Register.

5. Defendant BABY’s WEST 42 LLC is an active domestic limited liability company registered with the New York State Department of State (the “DOS”) to receive service of legal process at the subject premises according to the online entity database maintained by the DOS.

6. Defendants “JOHN DOE” and “JANE DOE” are fictitiously named parties, true names unknown, the parties intended being any person or entity who is an owner, lessor, lessee, operator, employee, agent and/or occupant of the subject premises, and any other person or entity claiming any right, title or interest in the real property which is the site of the subject premises.

7. The online database of licensed premises maintained by the New York State Liquor Authority was reviewed on the date of this affirmation. This review reflects that the subject premises is not listed as a premises that is currently granted a New York State Liquor Authority (“NYSLA”) license authorizing the sale and on-premises consumption of alcoholic beverages. The subject premises had previously been granted a license by the SLA, but it expired on June 30, 2024.

8. Defendants BABY's WEST 42 LLC, "JOHN DOE" and "JANE DOE," the tenant(s)/operator(s) of the subject premises, are permitting the sale and on-premises consumption of alcoholic beverages and the license database maintained by the New York State Liquor Authority does not reflect the premises is licensed. Unlicensed activity under the Alcoholic Beverage Control Law constitutes a public nuisance under the Section 7-703(h) of the New York City Administrative Code. *See*, Administrative Code § 7-701, *et seq.*

**UNLICENSED ACTIVITY IN VIOLATION OF THE ALCOHOLIC
BEVERAGE CONTROL LAW AT THE SUBJECT PREMISES**

9. On November 1, 2024, and December 9, 2024, alcoholic beverages were warehoused, sold and/or consumed at the subject premises without a license or permit from the New York State Liquor Authority, in violation of Sections 100, 64-b(1) and/or 96(a)(1) of the Alcoholic Beverage Control Law. Additionally, on one of the incident dates, a patron at the subject premises suffered a gunshot wound to the head, while on the other date, police officers cleared the subject premises after a patron was allegedly seen brandishing a firearm.

10. Members of the NYPD have come to know the subject premises as a business operating as "Baby's NYC." This is based on information provided by members of the public, as well as postings to social media websites, such as X and Instagram. The subject premises is operated as nightclub/lounge that sells alcoholic beverages. This includes, for example, a posting to Instagram advertising an event that was scheduled to take place at the Subject Premises on October 11, 2024. In this posting, it was stated that alcoholic beverages would be offered for sale, including cognac and tequila.

November 1, 2024

11. On the evening of October 31, 2024, going into the morning of November 1, 2024, the NYPD became aware that a Halloween party would take place within the subject premises.

12. In order to be able to quickly respond to any emergency incidents, Lieutenant John Corde and other officers from the 10th Precinct were assigned to remain in the vicinity of the subject premises during this event.

13. Upon arriving at the subject premises, Lt. Corde and the other officers introduced themselves to individuals who appeared to be employed as security guards and a manager for the subject premises. The officers made the security guards and manager aware that they were outside the subject premises and were available to respond to any incidents that required police attention.

14. At approximately 2:20 a.m. on November 1, 2024, the head security guard approached Lt. Corda and stated that one of the patrons had brandished a firearm inside the subject premises. Lt. Corda and the other officers expressed their concern that the firearms posed an imminent threat to everyone inside the subject premises. The head security guard shared this concern, and thus he granted the NYPD permission to enter the subject premises and have all the patrons exit. The manager also agreed to close the subject premises for the evening once all the patrons had exited. Shortly thereafter, Lt. Corda and the other officers then entered the subject premises.

15. Upon entering the subject premises Lt. Corda observed approximately over four hundred (400) individuals inside. He and the other officers then started the process of clearing out the subject premises. All of the patrons eventually left without incident.

16. While walking throughout the subject premises Lt. Corda observed that it was set up as a nightclub, in that it had DJ booths and areas for dancing.

17. Lt. Corda also observed several bar areas within the subject premises, all of which were stocked with alcoholic beverages, including spirits and beer. Lt. Corda knew these bottles to contain alcoholic beverages based on his training and experience, as well as the distinctive

packaging.

18. Furthermore, Lt. Corda observed cups of alcoholic beverages throughout the subject premises, which he determined to contain alcoholic beverages based on their odor and appearance.

19. At no point during his time inside the subject premises did Lt. Corda observe a valid license issued by the New York State Liquor Authority. The online database of licensees maintained by the SLA reflects that in the past, the subject premises was licensed, and such license expired on June 30, 20204.

December 9, 2024

20. On the evening of December 8, 2024, going into the morning of December 9, 2024, the NYPD became aware that an event would take place within the subject premises. This included a potential musical performance. In order to be able to quickly respond to any emergency incidents, Sgt. Jason Castillo and other officers from the 10th Precinct were assigned to remain in the vicinity of the subject premises during this event.

21. Upon arriving at the subject premises, Sgt. Castillo and the other officers introduced ourselves to individuals who appeared to be employed as security guards for the subject premises. The officers made the security guards aware that they were outside the subject premises and were available to respond to any incidents that required police attention.

22. At approximately 1:30 a.m. on December 9, 2024, one of the security guards approached Sgt. Castillo and the other officers and informed them that three (3) gun shots had just occurred within the subject premises. Sgt. Castillo and the other officers then entered the subject premises in order to assist the victim, as well as prevent any potential additional violence.

23. As Sgt. Castillo entered the subject premises he observed numerous patrons running

out of the building. By the time he entered the subject premises, approximately seventy (70) patrons remained inside.

24. A short time later, Sgt. Castillo and the other officers found a male laying in the rear of the ground floor. Thereafter emergency medical service workers arrived to treat the victim and remove him to a hospital. The victim was later determined by the hospital to have been shot in the head multiple times.

25. While walking throughout the subject premises Sgt. Castillo observed that it was set up as a nightclub, in that it had DJ booths and areas for dancing.

26. Sgt. Castillo also observed several bar areas within the subject premises, all of which were stocked with alcoholic beverages, including spirits and beer. Sgt. Castillo knew these bottles to contain alcoholic beverages based on his training and experience, as well as the distinctive packaging. One of the bars had a sign attached to it, which advertised “Mr. Sancho Pancho” brand tequila. At least one of the bars was equipped with multiple cash registers/ordering screens.

27. Furthermore, Sgt. Castillo observed cups of alcoholic beverages throughout the subject premises, which he determined to contain alcoholic beverages based on their odor and appearance.

28. At no point during his time inside the subject premises did Sgt. Castillo observe a valid license issued by the New York State Liquor Authority. Furthermore, upon Sgt. Castillo’s information and belief, no one obtained a license from the New York State Liquor Authority to sell, serve and/or warehouse alcoholic beverages on December 9, 2024.

29. Upon information and belief, those individuals involved in the unlicensed sale and on-premises consumption of alcoholic beverages may still have access to the subject premises, thus the opportunity for illegal sale of alcoholic beverages and the consequential negative effect on the surrounding community still exists.

30. Accordingly, a permanent injunction and closing order is necessary to abate this serious public nuisance.

AS AND FOR A FIRST CAUSE OF ACTION

31. Plaintiff repeats and realleges, as if fully set forth herein at length, the facts contained in the preceding paragraphs.

32. Pursuant to Section 7-703 of the Administrative Code a public nuisance includes:

(f) Any building, erection or place, including one- or two-family dwellings, used for the purpose of a business, activity or enterprise which is not licensed as required by law;

33. Defendants have owned, leased, used, maintained or conducted the subject premises as a place wherein alcoholic beverages are sold without a license from the New York State Liquor Authority as is required under the laws of this state.

34. Plaintiff further asserts that defendants BABY'S WEST 42 LLC, "JOHN DOE" and "JANE DOE," the tenant(s)/operator(s) of the subject premises, have a duty to be aware of the unlicensed sale and on-premises consumption of alcoholic beverages at the subject premises. A corporation is liable for the conduct of its agents through whom it conducts its business so long as they act within the scope of their authority, real or apparent. *See People v. Rochester R. & L.*, 195 N.Y. 102, 105 (1909). An employer has a personal duty to inquire into the conditions prevailing in his business, and he does not rid himself of that duty because the extent of the business may preclude his personal supervision and compel reliance on subordinates. *See People ex rel. Price*

v. Sheffield Farms, etc., Co., 225 N.Y. 25, 30 (1918).

35. Defendants BABY’S WEST 42 LLC, “JOHN DOE” and “JANE DOE,” the tenant(s)/operators(s) of the subject premises, should have been aware of the unlicensed sale and on-premises consumption of alcoholic beverages at the subject premises as this illegal activity was open and notorious, and permitted, maintained, and/or conducted without obtaining a license from the New York State Liquor Authority.

36. Upon information and belief, defendant WEST 42nd STREET DEVELOPERS, LLC, the deed owner of the subject premises, was also aware of, should have been aware of, or had a reason or a duty to be aware of the unlicensed sale of alcoholic beverages at the subject premises. It is well established that a landlord has a duty to maintain his property in a safe condition, which requires him to take minimal precautions to protect against the reasonably foreseeable criminal acts of third persons. This duty arises where the party possessing the property knows or has reason to know of a likelihood of conduct by third persons which is likely to endanger the public. *See Maria S. v. Willow Enters.*, 651 N.Y.S.2d 486 (1st Dept. 1996). Given that a shooting occurred on one (1) of the two (2) incident dates—which resulted in a homicide—and that, on both dates, officers observed multiple bar areas stocked with alcoholic beverages, a cash register, and cups of alcoholic beverages throughout the subject premises, and that on one of the dates an officer observed 400-500 patrons inside the subject premises, along with online posts advertising the sale of alcoholic beverages at the subject premises, plaintiff respectfully submits that defendant WEST 42nd STREET DEVELOPERS, LLC was on notice that the subject premises was being used for the unlicensed sale and on-premises consumption of alcohol, and therefore, has a duty to protect the public from this criminal activity.

37. Pursuant to Section 7-706 and Section 7-714 of the Administrative Code, plaintiff is entitled to a judgment against defendants, their agents, assigns and/or representatives, and any and all persons acting individually or in concert with them, permanently enjoining such public nuisance; directing the sheriff to seize and remove from the subject premises all material, equipment and instrumentalities used in the creation and maintenance of the public nuisance and directing the sale by the sheriff of such property; and closing the subject premises for a period of one (1) year from the posting of the judgment.

38. Defendants have intentionally conducted, maintained or permitted the aforementioned public nuisance.

39. Pursuant to Section 7-706(h) of the Administrative Code, plaintiff is entitled to a judgment against the defendants ordering that each defendant pay a penalty of one thousand dollars (\$1,000.00) for each day that such defendant intentionally conducted, maintained or permitted the public nuisance.

AS AND FOR A SECOND CAUSE OF ACTION

40. Plaintiff repeats and realleges, as if fully set forth herein at length, the facts contained in the preceding paragraphs.

41. Pursuant to Section 7-703 of the Administrative Code, a public nuisance includes:

(h) Any building, erection or place, including one- or two- family dwellings, where, within the period of one year prior to the commencement of an action under this chapter, there have occurred at least four instances of the unlawful activities described in section 123 of the alcoholic beverage control law, where a reasonable person would or should have been aware that such unlawful activity was occurring Notwithstanding the foregoing, only one instance of such unlawful activity shall be required if the building, erection or place was not licensed as required by the alcohol beverage control law.

42. Section 123(1)(a) of the Alcoholic Beverage Control Law states, in relevant part,

as follows:

Injunction for unlawful manufacturing, sale or consumption of liquor, wine or beer.

1. (a) If any person shall engage or participate or be about to engage or participate in the manufacturing or sale of liquor, wine or beer in this state *without obtaining the appropriate license therefor*, or shall traffic in liquor, wine or beer contrary to any provision of this chapter, or otherwise unlawfully, or shall traffic in illegal liquor, wine or beer, or, operating a place for profit or pecuniary gain, with a capacity for the assemblage of twenty or more persons, shall permit a person or persons to come to such place of assembly for the purpose of consuming alcoholic beverages without having the appropriate license therefor pursuant to section sixty-four-b of this chapter, the liquor authority or any taxpayer residing in the city, village or town in which such activity is or is about to be engaged or participated in or such traffic is being conducted, or the city, town or village, may present a verified petition or complaint to a justice of the supreme court...for an order enjoining such person engaging or participating in such activity or from carrying on such business (Emphasis added)

43. Section 64-b of the Alcoholic Beverage Control Law states that:

License to sell liquor on premises commonly known as a bottle club

It shall be unlawful for any person, partnership or corporation operating a place for profit or pecuniary gain, with a capacity for the assemblage of twenty or more persons to permit a person or persons to come to the place of assembly for the purpose of consuming alcoholic beverages on said premises, which alcoholic beverages are either provided by the operator of the place of assembly, his agents, servants or employees, or are brought onto said premises by the person or persons assembling at such place, unless an appropriate license has first been obtained from the state liquor authority by the operator of said place of assembly.

44. Section 100(1) of the Alcoholic Beverage Control Law states that:

No person shall manufacture for sale or sell at wholesale or retail any alcoholic beverage within the state without obtaining the appropriate license therefor required by this chapter.

45. On November 1, 2024, and December 9, 2024, the subject premises was the site of the unlicensed sale and/or on-premises consumption of alcoholic beverages, in violation of the unlawful activities described under Section 123 of the Alcoholic Beverage Control Law.

46. Plaintiff further asserts that defendants BABY'S WEST 42 LLC, "JOHN DOE" and "JANE DOE," the tenant(s)/operator(s) of the subject premises, has/have a duty to be aware of the unlicensed sale and on-premises consumption of alcoholic beverages at the subject premises. A corporation is liable for the conduct of its agents through whom it conducts its business so long as they act within the scope of their authority, real or apparent. *See People v. Rochester R. & L.*, 195 N.Y. 102, 105 (1909). An employer has a personal duty to inquire into the conditions prevailing in his business, and he does not rid himself of that duty because the extent of the business may preclude his personal supervision and compel reliance on subordinates. *See People ex rel. Price v. Sheffield Farms, etc., Co.*, 225 N.Y. 25, 30 (1918).

47. Defendants BABY'S WEST 42 LLC, "JOHN DOE" and "JANE DOE," the tenant(s)/operators(s) of the subject premises, should have been aware of the unlicensed sale and on-premises consumption of alcoholic beverages at the subject premises as this illegal activity was open and notorious, and permitted, maintained, and/or conducted without obtaining a license from the New York State Liquor Authority.

48. Upon information and belief, defendant WEST 42nd STREET DEVELOPERS, LLC, the deed owner of the subject premises, was also aware of, should have been aware of, or had a reason or a duty to be aware of the unlicensed sale of alcoholic beverages at the subject premises. It is well established that a landlord has a duty to maintain his property in a safe condition, which requires him to take minimal precautions to protect against the reasonably foreseeable criminal acts of third persons. This duty arises where the party possessing the property

knows or has reason to know of a likelihood of conduct by third persons which is likely to endanger the public. *See Maria S. v. Willow Enters.*, 651 N.Y.S.2d 486 (1st Dept. 1996). Given that a shooting occurred on one (1) of the two (2) incident dates—which resulted in a homicide—and that, on both dates, officers observed multiple bar areas stocked with alcoholic beverages, a cash register, and cups of alcoholic beverages throughout the subject premises, and that on one of the dates an officer observed 400-500 patrons inside the subject premises, along with online posts advertising the sale of alcoholic beverages at the subject premises, plaintiff respectfully submits that defendant WEST 42nd STREET DEVELOPERS, LLC was on notice that the subject premises was being used for the unlicensed sale and on-premises consumption of alcohol, and therefore, has a duty to protect the public from this criminal activity.

49. Pursuant to Section 7-706 and Section 7-714 of the Administrative Code, plaintiff is entitled to a judgment against defendants, their agents, assigns, employees and/or representatives, and any and all persons acting individually or in concert with them, permanently enjoining such public nuisances; directing the sheriff to seize and remove from the subject premises all material, equipment and instrumentalities used in the creation and maintenance of the public nuisance; and closing the subject premises for a period of one (1) year from the posting of the judgment.

50. Defendants have owned, leased, used, maintained or conducted the subject premises for the unlicensed sale of alcoholic beverages and have permitted, promoted, condoned or acquiesced in the use of the subject premises for the illegal activity.

51. Defendants have intentionally conducted, maintained or permitted the aforementioned public nuisance.

52. Pursuant to Section 7-706(h) of the Administrative Code, plaintiff is entitled to a judgment against defendants ordering that each defendant pay a penalty of one thousand (\$1,000.00) dollars for each day that such defendant intentionally conducted, maintained or permitted the public nuisance.

AS AND FOR A THIRD CAUSE OF ACTION

53. Plaintiff repeats and realleges, as if fully set forth herein at length, the facts contained in the preceding paragraphs.

54. Pursuant to Section 7-703 of the Administrative Code, a public nuisance includes:

(l) Any building, erection or place, including one- or two-family dwellings, wherein there is occurring a criminal nuisance as defined in section 240.45 of the penal law;

55. Section 240.45(2) of the Penal Law states that, “[a] person is guilty of criminal nuisance in the second degree when . . . [h]e knowingly conducts or maintains any premises, place or resort where persons gather for purposes of engaging in unlawful conduct.”

56. The subject premises has been used as a place where persons engage in the illegal sale and on-premises consumption of alcoholic beverages in violation of Section 100(1) and 64-b of the Alcoholic Beverage Control Law.

57. Defendants have created a criminal nuisance pursuant to Penal Law § 240.45(2) by knowingly conducting or maintaining the subject premises as a place where the unlicensed sale and on-premises consumption of alcoholic beverages occurs in violation of the unlawful activities described under the Alcoholic Beverage Control Law.

58. Plaintiff further asserts that defendants BABY’S WEST 42 LLC, “JOHN DOE” and “JANE DOE,” the tenant(s)/operator(s) of the subject premises, have a duty to be aware of the unlicensed sale and on-premises consumption of alcoholic beverages at the subject premises. A

corporation is liable for the conduct of its agents through whom it conducts its business so long as they act within the scope of their authority, real or apparent. *See People v. Rochester R. & L.*, 195 N.Y. 102, 105 (1909). An employer has a personal duty to inquire into the conditions prevailing in his business, and he does not rid himself of that duty because the extent of the business may preclude his personal supervision and compel reliance on subordinates. *See People ex rel. Price v. Sheffield Farms, etc., Co.*, 225 N.Y. 25, 30 (1918).

59. Defendants BABY'S WEST 42 LLC, "JOHN DOE" and "JANE DOE," the tenant(s)/operators(s) of the subject premises, should have been aware of the unlicensed sale and on-premises consumption of alcoholic beverages at the subject premises as this illegal activity was open and notorious, and permitted, maintained, and/or conducted without obtaining a license from the New York State Liquor Authority.

60. Upon information and belief, defendant WEST 42nd STREET DEVELOPERS, LLC, the owner of the subject premises, was also aware of, should have been aware of, or had a reason or a duty to be aware of the unlicensed sale of alcoholic beverages at the subject premises. It is well established that a landlord has a duty to maintain his property in a safe condition, which requires him to take minimal precautions to protect against the reasonably foreseeable criminal acts of third persons. This duty arises where the party possessing the property knows or has reason to know of a likelihood of conduct by third persons which is likely to endanger the public. *See Maria S. v. Willow Enters.*, 651 N.Y.S.2d 486 (1st Dept. 1996). Given that a shooting occurred on one (1) of the two (2) incident dates—which resulted in a homicide—and that, on both dates, officers observed multiple bar areas stocked with alcoholic beverages, a cash register, and cups of alcoholic beverages throughout the subject premises, and that on one of the dates an officer observed 400-500 patrons inside the subject premises, along with online posts advertising the sale

of alcoholic beverages at the subject premises, plaintiff respectfully submits that defendant WEST 42nd STREET DEVELOPERS, LLC was on notice that the subject premises was being used for the unlicensed sale and on-premises consumption of alcohol, and therefore, has a duty to protect the public from this criminal activity.

61. By virtue of the foregoing, there exists a public nuisance at the subject premises.

62. Pursuant to Sections 7-706 and 7-714 of the Administrative Code, plaintiff is entitled to a judgment against defendants, their agents, assigns, employees and/or representatives, and any and all persons acting individually or in concert with them, permanently enjoining such public nuisance; directing the sheriff to seize and remove from the subject premises all material, equipment and instrumentalities used in the creation and maintenance of the public nuisance; and closing the subject premises for a period of one (1) year from the posting of the judgment.

63. Defendants have owned, leased, used, maintained or conducted the subject premises for the purpose of the illegal sale of alcoholic beverages and have permitted, promoted, condoned or acquiesced in the use of the subject premises for the illegal activity

64. Pursuant to Section 7-706(h) of the Administrative Code, plaintiff is entitled to a judgment against defendants ordering that each defendant pay a penalty of one thousand (\$1,000.00) dollars for each day that such defendant intentionally conducted, maintained or permitted the public nuisance.

WHEREFORE, plaintiff demands judgment against defendants as follows:

a. With respect to the **FIRST CAUSE OF ACTION**, directing that the subject premises described herein and made a defendant in this action shall be permanently and perpetually enjoined as a place which is conducted, maintained or permitted to be a public nuisance, by the defendants, their agents, assigns, employees and/or representatives, and any and all persons acting

individually or in concert with them; directing the sheriff to seize and remove from the subject premises all material, equipment and instrumentalities used in the creation and maintenance of the public nuisance; directing that the subject premises, which has been conducted and maintained as a public nuisance, shall be closed against all use for a period of one (1) year from the date of the posting of the judgment herein, pursuant to Section 7-714(c) of the Administrative Code, unless sooner released as provided by law; and awarding to plaintiff civil penalties in the amount of one thousand (\$1,000.00) dollars from each defendant for each and every day that such defendant intentionally conducted, maintained or permitted the public nuisance;

b. With respect to the **SECOND CAUSE OF ACTION**, directing that the subject premises described herein and made a defendant in this action shall be permanently and perpetually enjoined as a place which is conducted, maintained or permitted to be a public nuisance, by defendants, their agents, assigns, employees and/or representatives, and any and all persons acting individually or in concert with them; directing the sheriff to seize and remove from the subject premises all material, equipment and instrumentalities used in the creation and maintenance of the public nuisance; directing that the subject premises, which has been conducted and maintained as a public nuisance, shall be closed against all use for a period of one (1) year from the date of the posting of the judgment herein, pursuant to Section 7-714(c) of the Administrative Code, unless sooner released as provided by law; and awarding to plaintiff civil penalties in the amount of one thousand (\$1,000.00) dollars from each defendant for each and every day that such defendant intentionally conducted, maintained or permitted the public nuisance;

c. With respect to the **THIRD CAUSE OF ACTION**, directing that the subject premises described herein and made a defendant in this action shall be permanently and perpetually enjoined as a place which is conducted, maintained or permitted to be a public nuisance, by

defendants, their agents, assigns, employees and/or representatives, and any and all persons acting individually or in concert with them; directing the sheriff to seize and remove from the subject premises all material, equipment and instrumentalities used in the creation and maintenance of the public nuisance; directing that the subject premises, which has been conducted and maintained as a public nuisance, shall be closed against all use for a period of one (1) year from the date of the posting of the judgment herein, pursuant to Section 7-714(c) of the Administrative Code, unless sooner released as provided by law; and awarding to plaintiff civil penalties in the amount of one thousand (\$1,000.00) dollars from each defendant for each and every day that such defendant intentionally conducted, maintained or permitted the public nuisance;

d. Taxing and allowing plaintiff's costs and disbursements against defendants pursuant to the Civil Practice Law and Rules, and directing that plaintiff have execution therefor;

e. Taxing and allowing plaintiff's actual cost, expenses and disbursements in investigating, bringing and maintaining the action, pursuant to Administrative Code § 7-714 (g), and directing that plaintiff have execution therefor; and

f. Granting to plaintiff such other and further relief as the Court may deem just and proper and equitable.

DATED: New York, New York
January 27, 2025



MURIEL GOODE-TRUFANT
Corporation Counsel of the
City of New York
MICHAEL GERBER, ESQ.
Deputy Commissioner,
Legal Matters
New York City Police Dept.
Attorney for Plaintiff
By: EVAN GLUCK, ESQ.
375 Pearl Street, Box 39
New York, New York 10038
(646) 610-4516

VERIFICATION

MARQUIS BRADSHAW, an attorney admitted to practice before the Courts of the State of New York, hereby affirms pursuant to CPLR 2106 under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the following is true, and I understand that this document may be filed in an action or proceeding in a court of law:

I have been duly designated as Acting Corporation Counsel of the City of New York and, as such, I am an officer of the City of New York, the Plaintiff in the within action. I have read the foregoing complaint in THE CITY OF NEW YORK v. THE LAND & BUILDING KNOWN AS

512 West 42nd Street, also known as 510 West 42nd Street, the commercial premises operating within the basement, ground floor and second floor of the building at 512 West 42nd Street,
New York County Tax Block #1070, Tax Lot #20,

and know the contents thereof, which are to my knowledge true, except as to matters therein alleged upon information and belief, and as to those matters, I believe them to be true. The grounds for my belief as to all matters not stated upon my knowledge are records of the City of New York and statements by officers, employees and agents of the City of New York.

The reason why this verification is not made by the Plaintiff is because Plaintiff is a corporation.

DATED: New York, New York
January 24, 2025


MARQUIS BRADSHAW